



SPONSOR: Rep. K. Williams & Sen. Walsh
Reps. Carson, Gorman, Hilovsky, Parker Selby,
Ross Levin, D. Short, Michael Smith, Cooke, Yearick,
Heffernan on behalf of all Representatives; Sens. Hansen,
Hocker, Huxtable, Pettyjohn, Lockman

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 26

AN ACT TO AMEND TITLE 21 OF THE DELAWARE CODE RELATING TO NUMBER PLATES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 2115, Title 21 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2115. Violations of registration provisions.

~~No person shall:~~ It is unlawful to do any of the following:

(1) Operate or, being the owner of any motor vehicle, ~~trailer~~ trailer, or semitrailer, knowingly permit the operation upon a highway of any motor vehicle, ~~trailer~~ trailer, or semitrailer which is not registered or which does not have attached thereto and displayed thereon the number plate or plates assigned thereto by the Department and unexpired registration plate or plates, subject to the exemptions allowed in this title, or under temporary or limited permits as otherwise provided by this ~~title~~; title.

(2) Display or cause or permit to be displayed or have in possession any registration card, number ~~plate~~ plate, or registration plate, knowing the same to be fictitious or to have been canceled, revoked, ~~suspended or altered~~; suspended, or altered.

(3) Lend to, or knowingly permit the use by, one not entitled thereto any registration card, number ~~plate~~ plate, or registration plate issued to the person so lending or permitting the use ~~thereof~~; thereof.

(4) Fail or refuse to surrender to the Department upon demand any registration card, number ~~plate~~ plate, or registration plate which has been suspended, ~~canceled~~ canceled, or revoked as provided in this ~~title~~; title.

(5) Use a false or fictitious name or address in any application for the registration or inspection of any vehicle, or for any renewal or duplicate thereof, or for any certificate or transfer of title, or knowingly make a false statement, knowingly conceal a material ~~fact~~ fact, or otherwise commit a fraud in any such ~~application~~; application.

(6) Drive or move or, being the owner, cause or knowingly permit to be driven or moved, on any highway any vehicle or combination of vehicles which is in such unsafe condition as to endanger any person or which is equipped in

any manner in violation of this title, but the provisions of this title with respect to equipment on vehicles shall not apply to implements of husbandry, road machinery, road ~~rollers~~rollers, or farm tractors except as herein made ~~applicable~~applicable.

(7) Own or operate any qualified motor vehicle as defined under the International Registration Plan, as authorized in Chapter 4 of this title, not properly displaying an apportioned plate with required registration credentials, or operate a qualified motor vehicle without having in that person's possession a trip permit registration as authorized in § 2103(6) of this title. Any person who violates this ~~subsection~~ paragraph shall, for the first offense, be fined not less than \$115 nor more than \$345, and for each subsequent offense not less than \$345 nor more than \$575. In addition, such person shall also be fined in an amount which is equal to the cost of registering the vehicle at its gross weight at the time of the offense or at the maximum legal limit, whichever is less, which fine shall be suspended if, within 5 days of the offense, the court is presented with a valid registration card for the gross weight at the time of the offense or the maximum legal limit for such vehicle.

(8) Operate or tow any farm vehicle upon the highways or roads of this State unless properly licensed by the Department, or being the owner of any farm vehicle knowingly permit the operation or towing of any farm vehicle upon the highways or roads of this State unless operated or towed by a person who is properly licensed by the Department, whether or not the farm vehicle is ~~registered, or is exempt from inspection and registration~~ pursuant to § 2113 of this ~~title~~title.

(9) Possess, operate any motor vehicle with, purchase, install, manufacture, sell, offer to sell, or otherwise distribute a number plate flipping device. A "number plate flipping device" means a manual, electric, or mechanical device designed or adapted to be installed on a motor vehicle that does either of the following:

a. Switch between two or more number plates for the purpose of allowing a motor vehicle operator to change the number plate displayed on the operator's vehicle.

b. Hide a number plate from view by turning the number plate so that the number plate registration number is not visible.

~~(9)~~(10) Do any act forbidden or fail to perform any act required under this chapter.

Section 2. Amend § 2116, Title 21 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2116. Penalties.

(a) Whoever violates this chapter shall, for the first offense, be fined not less than \$10 nor more than \$100 or be imprisoned not less than 30 days nor more than 90 ~~days~~ days, or both. For each subsequent like offense, the person shall be

52 fined not less than \$50 nor more than \$200 or imprisoned not less than 90 days nor more than 6 ~~months~~ months, or both, in
53 addition to which any person, being the operator or owner of any vehicle which requires a registration fee which is
54 calculated upon the gross weight of the vehicle and any load thereon shall be fined at a rate double that which is set forth in
55 this subsection and be imprisoned as provided ~~herein~~ herein, or both. In addition, such person shall also be fined in an
56 amount which is equal to the cost of registering the vehicle at its gross weight at the time of the offense or at the maximum
57 legal limit, whichever is less; which fine shall be suspended, if within 5 days of the offense the court is presented with a
58 valid registration card for the gross weight at the time of the offense for the maximum legal limit for such vehicle.

59 (b) (1) Notwithstanding the provisions of subsection (a) of this section, whoever violates ~~§ 2115(1)-(5)~~ § 2115(1)
60 through (5) or (9) of this title shall, for the first offense, be fined not less than \$50 nor more than \$200, be imprisoned not
61 less than 30 days nor more than 90 days, or be penalized by both fine and imprisonment. For each subsequent like offense,
62 such person shall be fined not less than \$100 nor more than \$300, be imprisoned not less than 90 days nor more than 6
63 months, or be penalized by both fine and imprisonment.

SYNOPSIS

This Act makes it unlawful to possess, operate any motor vehicle with, purchase, install, manufacture, sell, offer to sell, or otherwise distribute a number plate flipping device. A “number plate flipping device” means a manual, electric, or mechanical device designed or adapted to be installed on a motor vehicle that does either of the following: a. Switch between two or more number plates for the purpose of allowing a motor vehicle operator to change the number plate displayed on the operator's vehicle; or b. Hide a number plate from view by turning the number plate so that the number plate registration number is not visible. The penalty for violation of this statute is for the first offense, a fine not less than \$50 nor more than \$200, imprisonment not less than 30 days nor more than 90 days, or both. For each subsequent like offense, such person shall be fined not less than \$100 nor more than \$300, be imprisoned not less than 90 days nor more than 6 months, or both.

The Act also makes technical changes to existing code language to conform to the Legislative Drafting Manual. A reference to farm vehicles being exempt from registration is removed, because that exemption was removed from the Code in 2014.

This Act requires a greater than majority vote for passage because § 28 of Article IV of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to create a new crime within the jurisdiction of the Court of Common Pleas, Family Court, or Justice of the Peace Court.